

The Claremont City Council held a meeting on Wednesday, July 22, 2020, via Zoom.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Mayor Lovett read the following statement: *This meeting is being conducted in accordance with the provisions of the Governor's Executive Order no. 2020-04 and the emergency meeting provisions of RSA 91-A to permit participation of board members by electronic means. Under the conditions of the current COVID-19 pandemic and the protocols established by the Centers for Disease Control (CDC), it is not reasonably practical for a quorum of this board's members to attend this meeting in person.*

To join by telephone:

1 646 558 8656

Webinar ID: 826 2078 3512

Password: 254001

If there is a problem getting through to that number, please call 603-542-7002.

Members of the Council present were:

Ward I Councilor Andrew O'Hearne – Council Chambers – Councilors Sweetser & Stone

At-Large Councilor Abigail Kier – Home – Husband & Child

At-Large Councilor Erica Sweetser – Council Chambers – Councilors O'Hearne & Stone

Assistant Mayor Allen Damren – Home – Alone

Mayor Charlene Lovett – Home – Alone

At-Large Councilor Debora Matteau – Home – Alone

At-Large Councilor Nicholas Koloski – Escape Room – Alone

Ward II Councilor James Contois – Home – Alone

Ward III Councilor Jonathan Stone – Council Chambers – Councilors Sweetser & O'Hearne

Also present:

Edward Morris, City Manager

AGENDA CHANGES

Mayor Lovett said Councilor Sweetser would be doing the Pleasant Street Update Presentation. There were no changes.

A motion was made by Councilor O'Hearne and seconded by Councilor Stone to remove Item D. Introduce Proposed Council Rules Changes (Mayor Lovett), under New Business.

Councilor O'Hearne said that when he and Councilor Koloski had introduced Council Rule changes, they were instructed to submit them in writing and then they would be addressed the next meeting. He said this is the first time seeing this.

Mayor Lovett said this was put on the agenda to introduce it to the Council. The discussion will happen at the next meeting in accordance with Council Rules.

Roll call vote:

O’Hearne - yes

Kier - no

Sweetser - yes

Damren - no

Matteau - no

Koloski - yes

Contois - no

Stone - yes

Lovett - no

Motion failed 4-5.

MAYOR’S NOTES

- Commended Councilor Sweetser on the in-depth research she did on the Rethink Pleasant Street Project.
- Read from an announcement received from Walmart requiring all shoppers to wear face coverings in the store. She reminded everyone that the City does not mandate face coverings.
- August 26th is the 100th anniversary of the 19th Amendment which guarantees American women the right to vote. Local Rotary Club will work with the City Manager’s office to hold an event on August 29th.

CITY MANAGER’S REPORT

- Thanked Councilor Sweetser for the work she did on the PowerPoint presentation. She helped get feedback from community members.
- **GOFERR Reimbursement** –The City has applied for \$54,910.25 of reimbursement from the GOFERR funds for May and June. Adding this to the \$26,987.05 applied for to cover the March and April timeframe, brings the total reimbursement request to \$81,897.30. The State has added one period of reimbursements to these grants, so we will have two more opportunities to request reimbursement through October 15th.
- **Website** - Tentative public launch date for the new website is July 27th. We expect that there will be a few details and issues that will need to be addressed following the launch. Also, new pages will be added over the next couple months. Thank you to Rebecca Vinduska for all her hard work on this.

- **139 Main Street** – We have received bids for demolition of 139 Main Street. Unfortunately, we did not receive any bids for the shoring that is needed to begin demolition. The bid for shoring, with changes, will be re-released this upcoming week.
- **Arrowhead Roof Project** – The roof project at Arrowhead has started and should be completed before the end of the month.
- **City Complex Roof** – The first phase of the City Complex roof and HVAC project has been completed, with the removal of the old HVAC units. The new units are expected to be installed on the roof the week of August 10th. After installation, the roof will be replaced. We are hopeful that this project will be completed in late August.
- **Street Painting** – DPW will start painting more crosswalks and street markings this next week, including the crosswalk on Broad Street for the Rail Trail. They will also bring back the line painting crew to paint lines for Broad Street and other roads around the City. The Line crew should be here sometime around the beginning of August.
- **Covid-19 Update** – As of the time this report was written, the State of New Hampshire has been trending around 20 new cases of COVID-19 per day. The last few days have been in the low to mid 20's. In Claremont, we are currently showing 1 active case.

The testing center at the middle school has been testing an average of about 30 people a day. We have been notified that the testing center will be closing after July 31, 2020.

As of today, we are down to one homeless client staying in a motel at the City's expense, and that person should be in their new apartment by the end of the month. This is down from a high of 10 people in the motel in mid-June. Over the last couple weeks, Southwestern Community Services has been able to free up shelter space to house 7 of our clients between their main building and the new decompression site. Others have secured apartments or moved on.

The Library is starting a reading program for children via an application called ReadSquared that was made available to all NH libraries by the State Library and was paid for with CARES Act funds. Children and parents can sign up at <https://fiskefree.readsquared.com>.

There are three programs, one for ages 0-4, one for ages 5-12, and our ongoing 1,000 Books before Kindergarten program. The programs allow children to record the amount of time they spend reading and earn points toward badges and prizes. There are also online "Missions" that children can complete to earn points. Children who earn 1,000 points will be able to print out a personalized certificate showing they completed the program. There are also lists of recommended books and children can write book reviews that can be shared.

In the Parks and Recreation Department, COVID-19 guidelines continue to be released and updated for youth sports and athletics. Our Parks Maintenance Crew has begun to work on bringing sports fields back up to playing standards. Due to spring sports being canceled completely, our athletic fields were not used and they were not maintained as they would have been if there were organized activities.

Claremont's Summer Soccer is back with its skills and drills sessions that started on July 6th. There are currently 110 kids in grades K through 6th registered for this program.

Adult Softball got off to a late start this year due to COVID 19. Co-Ed Softball has 17 teams and they started on July 12th. Modified Softball started on July 13th and they have 8 teams. All games are played at Bill Baril Memorial Field at Veterans Park.

- The Personnel Advisory Board (PAB) met and started review of the Merit Plan. The Board will meet in August/September and hope to present a recommendation to the Council after September.

COVID-19 Update

Mayor Lovett said today she was on a call with the White House and Dr. Birx was on the call. Some southern numbers are starting to decline. Every municipality should watch its testing positivity rate. Even an increase of a ½ point is worth noting. Health & Human Services believe that a vaccine could be available as early as October of this year.

Councilor Kier works at DHMC (Dartmouth Hitchcock Medical Center) and she is personally excited that local businesses are requiring face masks.

CITIZEN'S FORUM

None.

OLD BUSINESS

Resolution 2021-6 Condemning Police Brutality and Supporting Racial Justice – Public Hearing

WHEREAS, the City of Claremont strives to be a City where all people can feel protected, included, secure and safe; and

WHEREAS, the Claremont Police Department has denounced the actions taken by four members of the Minneapolis Police Department during the murder of George Floyd on May 25, 2020; and

WHEREAS, that horrific incident prompted communities all over the globe to acknowledge the inequalities of minority life in the United States; and

WHEREAS, the City Council recognizes the issues of systemic racism across the country and in our daily lives;

NOW, THEREFORE, BE IT RESOLVED that the Claremont City Council condemns all acts of brutality, racial profiling, and the use of excessive force by law enforcement officers; and

BE IT FURTHER RESOLVED that the City Council supports civilian oversight of the Police Department through the Police Commission, and advocates for education of the public to help the community understand the steps the Claremont Police Department has taken, and can take, to provide effective public safety; and

BE IT FURTHER RESOLVED that the City Council and City Staff will engage with community members to center the voices of stakeholders who have been historically marginalized or under-served by our present system. Together, we will identify what safety looks like for everyone; and

BE IT FURTHER RESOLVED that the City Council will also encourage the City Manager to reach out to the community and community leaders to develop educational opportunities within our city, focusing on the diversity of the community and understanding all races and cultures; and

BE IT FURTHER RESOLVED that the City of Claremont understands that systemic racism affects public health and community safety and is committed to increase its efforts to support evidence-based violence prevention programs, community-based educational systems, and domestic violence advocacy; and

BE IT FURTHER RESOLVED that these efforts not only condemn racism, but will be used as a call to action for our community to fight against systemic racism and all forms of social injustice.

Councilor Kier clarified that Rebecca Vinduska, Business Development Specialist, helped write the resolution. She said that Mr. Morris notified her that Ms. Vinduska would be working with her, and in no way did Councilor Kier reach out to the City Manager.

Councilor Kier said she worked with Mr. Morris, who talked with the Police Chief and Police Commission. She gave some statistics including in 2020 that police have killed over 1,000 people and that black people are three times more likely to be killed by the police. She said that police brutality and racism are a white problem and it needs to be addressed.

A motion was made by Councilor Kier and seconded by Councilor Matteau to adopt Resolution 2021-6 Condemning Police Brutality and Supporting Racial Justice.

Councilor Kier read the resolution into the record.

Councilor Kier said in the third to last paragraph, "...that the City Council will also encourage the City Manager to reach out to the community..." should read "...that the City Council, along with the City Manager, will reach out to the community..." Mayor Lovett agreed.

Councilor Stone asked about the Police Commission's stance on this. Mr. Morris said it was submitted to the Police Commission and they thought it was very well written and supported it as presented to the Council. Councilor Stone asked if it was presented to the Police Union. Mr. Morris said no. He worked with the Police Commission and the Police Chief.

Mayor Lovett opened the public hearing.

Walter Stapleton, Ward 3, about a year ago he attended a Task Force for Diversity and Inclusion session and he took issue with the premise of white supremacy, latent racial bias; and now we have a systemic racism comment, without a definition. He gave some history about systemic racism including before the Civil War and Martin King marching across the Edmund Pettus Bridge in Selma, Alabama. We (both black and white) have made progress since then in accepting the other race and working with one another. He takes exception to being referred to as racist, systemic or otherwise. BLM is a positive slogan. What happened to George Floyd is reprehensible, but all lives matter. He believes the focus of this resolution is exclusionary. He is opposed to this resolution as it plays into emotionalism and hype of the time.

Matt Mooshian, Ward 2, supports this resolution and said the Council should support it as well. He rejects what Mr. Stapleton said. There might not be the police brutality that is seen across the nation, but according to people of color, these things exist here. We've come a long way, but have a long way to go. He said there is racism in Claremont and that you need to speak out against it.

Mayor Lovett closed the public hearing.

Police Chief Mark Chase said he reviewed the resolution and he supports it as the Police Chief and resident of Claremont. This is a small thing that the City Council can do, condemning and talking about it. He supports this resolution.

Councilor Stone said this resolution should also reflect that the number of police officers killed in the line of duty in 2020 is 135 as of today. It does a disservice to the members of police departments everywhere and he will not support this resolution.

Mayor Lovett thanked all who spoke and encouraged everyone to be willing to listen to all other perspectives, even if they don't agree with them.

Councilor O'Hearne made a point of order that after the motion was made, the resolution had been changed, but not accepted. Councilors Kier and Matteau agreed that in the third to last paragraph, "...that the City Council will also encourage the City Manager to reach

out to the community...” should read “...that the City Council, along with the City Manager, will reach out to the community...”

Roll call vote:

O’Hearne - abstain

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - no

Lovett - yes

Motion carried 7-1, 1 abstain.

Legislative Update

Mayor Lovett said that she and the City Manager had attended a Mayor’s Roundtable yesterday with regard to community power and during that discussion, it was brought up about the legislation that authorized local communities to stand up an aggregation committee. That will be a future agenda item.

Mayor Lovett said she went through all the minutes since January and there were two LSRs (Legislative Service Requests) that had been talked about. One was in February when Suzanne Carr, Welfare Director, talked about Welfare costs and no residency requirement. Council had agreed to submit an LSR to address that. The other one was brought up by Nashua Mayor Donchess who was concerned about the requirement of communities to pay into the NH Retirement System, because the board had met and reduced the anticipated growth on those investments. His idea was to amend some of the variables in the statute.

Mayor Lovett said she can put some proposals together for discussion at a future meeting. It was agreed to put this on the second meeting in August for discussion and then submit to the Delegation.

Pleasant Street Update

Councilor Sweetser showed a PowerPoint presentation.

- Downtown
- Claremont History
 - Claremont was settled in 1762
 - Farming town until the 1800s
 - Mill town until 1980s
- Timeline
 - 1964 Master Plan and Land Use Plan

- 1973 Downtown Redevelopment Plan
 - 1986 Truck Route Plan
 - 2009 Truck Route Plan
 - 2011-2013 Claremont City Center Project
 - 2014 City Center Initiative Committee
 - 2015 Parking Study
 - 2016 Master Plan Public Survey
 - 2018 Master Plan
 - 2018 Capital Improvement Program
- 1964 Master Plan
 - Land Use Plan
 - Determined that truck traffic impeded redevelopment and identified the best use of downtown as “people oriented”
- Map – City of Claremont Land Use Plan 1964
- 1973 Downtown Redevelopment Plan
 - Downtown redevelopment became a focus of the city
- 1986
 - The city wanted to reroute truck traffic, using South Street instead of Summer Street, but was discouraged due to low truck volume
- 2009 Truck Route
 - Truck traffic increased since 1986
 - 40% of the truck traffic is “pass through” traffic, not making stops in Claremont
 - Bad signage leads to truck driver confusion and Pleasant Street is seen as the easiest option
 - Truck traffic vibration is detrimental to historic buildings
- Truck Volumes on Major Routes
- 2009 Truck Route Continued
 - There were 4 alternatives
 - Alternative 2 used Mulberry and Sullivan Streets instead of Pleasant Street. This was considered the best of the alternatives.
- 2014 City Center Initiative
 - Mission Statement
- 2015 Parking Study
 - The downtown utilization rate for on-street public parking is about 46%. Occasionally it is 100% for short periods of time.
 - The utilization of off-street parking lots is very low, 20-25%.
- Parking Study
 - The area with the highest utilization is in zone G, close to Opera House Square
 - If all the downtown buildings were full, 1,600 parking spaces would be needed.
 - Shared parking could help get the needed numbers.
- Parking Garage
 - Public parking utilization at the parking Garage is very low. Only 1 out of the 64 public spaces was used during the study

- There is only 1 public parking space on the bottom floor.
 - Because most of the private spaces are utilized, the public opinion is that the parking garage is always full.
- Parking Study
 - Historic Downtowns with buildings in a row always need multiple parking options
 - Lack of, and confusing, signage; lack of lighting
 - Increase shared parking
- 2016 Master Plan Public Survey
 - 131 pages of public comment
 - 72% would like to see an increase in small business
 - 69% would like to see an increase in arts and culture
 - 70% said we should have a biking and walking initiative and improvements
 - According to public input to the question of “What areas of town need improvement?”
 - City Center received the most attention
- 2017 Master Plan Update
 - Residents age 65 and older will increase
 - Residents under age 15 will decline
- Youth
 - Research shows that college-educated young adults aged 25 to 34 are twice as likely to live within three miles of a city’s downtown core
- Capital improvement
 - Revitalizing Pleasant Street scored perfect 15, most important
- Sullivan County Economic Development Strategy
- Claremont Positives
 - Only Amtrak station in western NH
 - Airport
 - 1 of only 28 Tech Centers in NH
- Volunteers
 - Heart of Claremont
 - Healthy Vibrant Claremont
 - Claremont Citizen’s Group
- Infrastructure Issues
 - Our sewer and drainage lines are interconnected and legally we have to separate them
 - Even if we don’t do the project, we will still have to pay for water & sewer repairs
- Pleasant St. Revitalized
 - Adds parking spaces
 - It makes downtown pedestrian friendly
 - Decreases truck traffic
 - Encourages downtown redevelopment
- Concord Project from McFarland Johnson – recent project
- Financials

- Raise property values = lower tax rate
- Comparison of Similar Sized Communities
- Commercial Properties
 - Commercial properties pay business taxes; in the case of restaurants/hotels/inns, etc. they pay rooms and meals taxes
- We Don't Want More Taxes
 - The water and sewer lines need to be replaced regardless of any additional plans
 - This plan replaces bonds that expire next year

Mr. Morris said with the bond rate at 1.67%, and taking out water and sewer from the bond [water and sewer are enterprise funds], the bond payment will be less than the current bond payment. If this gets approved, we'll be in the January bond sale.

Councilor Sweetser continued.

- Infrastructure
 - Recessions are historically a time to work on infrastructure
 - Interest rates are low
- Identity
 - Some areas are known for technology
 - Some areas are known for their medical facilities
 - Some areas are known for their summer vacation attractions
 - Some areas are known for winter activities
 - Some areas are known for their financial districts
 - Cities have their own identities. Did you know we can make an identity that we want?
- What do you want to be the next picture of Claremont to be?

Mr. Morris said he talked to Congresswoman Kuster's office about the importance of job stimulation. If we move forward with this, we'll be bringing jobs in next spring/summer to work on these infrastructures.

Nancy Merrill, Planning and Development Director, said that previously, a study had been done for a small garage behind the Odd Fellows building on Pleasant Street; 100 space structure would cost \$3.6 million and 119 spaces would cost \$4.6 million.

Mr. Morris said there is a plan to make a presentation at the August 12th meeting and then to move forward with the bond vote on August 26th.

Councilor Koloski asked if there had been any more thought on his request for the Council to do a walking tour of downtown. Mr. Morris said that is being worked on and he would like to include the public in order to gather more input.

Councilor Koloski asked for information about the new communications center. Mr. Morris said \$1 million is being asked for in the bond for the communications center. To replace it is estimated to cost \$800,000-\$900,000.

Councilor Koloski asked about continuing with Zoom meetings and the ability for public to offer input on the bond.

David Pacetti typed in a question in the Chat area asking how deliveries will be made to businesses. Mr. Morris said he can have Ms. Merrill reach out to him and to put the information in the next presentation.

Twin State Properties Tax Deed

A motion was made by Assistant Mayor Damren and seconded by Councilor Stone to take the tax deed article off the table.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Mr. Morris said at the June 10, 2020, Council meeting, he had asked Council to add the eight Twin State properties to the Refuse Tax Deed list. He also asked to add two other properties to the list. It was determined that the eight Twin State properties have some value for tax deed sale. However, 36 Sugar River Drive (burned building) and 342 East Green Mountain Road (structural damage to the building) have issues. He asked the Council to take the eight Twin State properties off the Refuse Tax Deed list. He said he would not like to add the 36 Sugar River Drive or 342 East Green Mountain Road to the Tax Deed list. He believes the City will have to take these two properties in the future, but would like to have a plan before doing so. The eight Twin State properties will go with the others to the next tax deed sale. There are a couple properties on Main Street that the City is looking at. In the future, he will come back to the Council with a blight plan.

A motion was made by Assistant Mayor Damren and seconded by Councilor Stone to authorize the Tax Collector or other City official to remove the following properties from the Refuse Tax Deed list and to enforce all such tax liens upon the below-listed properties, as provided by RSA 80:50 and through any other remedy provided by law.

108-26

107-246

107-46

19 Centennial St

27 Elm St

162 Main St

107-47	166 Main St
107-48	170 Main St
121-63	11 First St
107-92	Lafayette St
107-72	32 Lafayette St

Mr. Morris said if there are any major remediation issues with these properties, he will come back before the Council. Councilor Koloski said he believes the Lafayette Street property may have issues.

Roll call vote:

O’Hearne - abstain

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0, 1 abstain.

Ordinance 575 Water Rates – Second Reading – Public Hearing

The purpose of this proposed change is to amend the City’s 2021 water rates to reflect that the City now charges on a quarterly basis for this particular year and to make some minor adjustments to the 2021 rate schedule (with the majority of the 2021 rates remaining the same overall level of charge as the 2020 rates). The Covid-19 pandemic and resulting Emergency Orders by the State of New Hampshire have created economic hardship for both residents and businesses within the City. In particular, small business is expected to suffer the greatest financial losses associated with the shutdown and such impact will be felt well into 2021. In recognition of the adversity that businesses and residents must cope with in terms of a struggling economy, the City seeks to institute some level of relief in the form of avoiding an increase of the City’s water rates for 2021.

It is the hope of the City that this avoidance of a water rate increase in 2021 will help, to some degree, with alleviating the financial stresses of the pandemic to allow residents as well as businesses to move forward and prosper in 2021. This change is requested by the City Manager.

Mr. Morris said this is to keep the water rates the same and to change the billing cycle, in the ordinance, to quarterly.

A motion was made by Assistant Mayor Damren and seconded by Councilor Sweetser to suspend Council Rules to require only reading of the Explanation of Proposed Action.

Roll call vote:

O’Hearne - abstain

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0, 1 abstain.

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau to adopt Ordinance 575 Water Rates.

Assistant Mayor Damren read the Explanation of Proposed Action into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O’Hearne - abstain

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0, 1 abstain.

NEW BUSINESS

Stevens Brook Conservation Easement Access

Ms. Merrill said when the Tractor Supply lot was developed, the State required that 20 acres of land on that development be put into conservation easement. The City accepted the easement and the Conservation Commission has a responsibility of overseeing it. There is no permanent access to the easement. The Conservation Commission is looking for a permanent access point so people can enjoy the easement. From North Street, there is a 30-foot right-of-way. Both lots are owned by the City. The lot to the west will not go on the auction list until after the North and Main Street Project is complete.

She said that the 30-foot right-of-way was voted on by the Council in 2011 to transfer it, with an additional 20 feet, to Thurloe Kensington Corporation (developer), but it was not conveyed.

Gary Dickerman, Conservation Commission Chairman, said the Conservation Commission is looking for access to this easement. There is a plan to put a walking trail in this easement area and this access would allow people to get into the easement, also some parking spaces. Ms. Merrill said the parking spaces would not be in the easement.

Councilor Koloski talked about the April 13, 2011, minutes where Council voted on the easement. He asked, again, for those minutes to be sent to the Council.

Ms. Merrill said the Conservation Commission needs to do more work on this. At this time, they are looking for permission from the Council to the Conservation Commission to review this parcel. Mr. Dickerman agreed.

A motion was made by Assistant Mayor Damren and seconded by Councilor Sweetser to authorize and give permission to the Conservation Commission to proceed ahead with determining the access road and to bring it back to the Council for final approval.

Roll call vote:

O'Hearne - abstain

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0, 1 abstain.

Re-Approve Identity Theft Prevention Policy

Mr. Morris said this is an annual review. One minor typographical error was corrected earlier today. He read some information from the Federal Trade Commission regarding identity theft prevention and Red Flags Rule.

Mary Walter, Finance Director, said this is an annual review and the City is at low risk for identity theft.

A motion was made by Councilor Contois and seconded by Assistant Mayor Damren to The Claremont City Council, pursuant to the "Fair and Accurate Credit Transactions Act of 2003," the "Red Flag Clarification Act of 2010" and Federal Regulation Title 16 Part 681, hereby approves the City of Claremont Identity Theft Prevention Program and authorizes the City Manager or his designees to take such actions as may be necessary to

implement said Identity Theft Prevention Program in accordance with applicable federal and state law and regulation.

Roll call vote:

O’Hearne - abstain

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0, 1 abstain.

Comcast Agreement

Mr. Morris said the Comcast Franchise Renewal Agreement was last presented to the Council on June 10th. Since that time, he has reviewed NHMA guidance for such agreements. He found this agreement was well negotiated and the City has pretty much all that is allowed by law in this contract. In this, there is an extension of broadband access to areas of the City that are not as densely populated as the rest of the City. There are eight projects to be done within the next three years. The more we expand broadband, the more attractive we are to residents. The 5% franchise fee is the maximum allowed by federal law. The City assesses taxes for right-of-way usage and for the property they own. We negotiated from a 10-year to an 8-year agreement.

Matt Skane, Comcast, thanked Mr. Morris and Ms. Walter for their work on this.

Councilor Contois said he does not support this agreement, saying Comcast is the largest media company in the world. There are no programs in Claremont for low income families, it has poor service, and poor speed. Nonprofits in the area pay over \$200 a month.

When asked about not going forward with this, Mr. Morris said that once Comcast has a franchise agreement, they could force the City to renew. Comcast is working to expand the City’s broadband. This franchise agreement is not exclusive. This allows us to move broadband and cable into places we don’t currently have it.

Mr. Skane said that if this agreement is rejected by the Council, it would delay line extensions, and there may be other issues going forward. Comcast has shown its willingness to get customers connected. Comcast has contributed over \$5 million in revenue over the contract timeframe.

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau to authorize the City Manager or his designees to enter into a Cable Television Franchise Agreement between the City of Claremont and Comcast of

Connecticut/Georgia/Massachusetts/New Hampshire/New York/North Carolina/Virginia/Vermont, LLC for the term of eight (8) years, beginning July 22, 2020 and ending at midnight on July 21, 2028.

Roll call vote:

O’Hearne - abstain

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - no

Stone - yes

Lovett - yes

Motion carried 7-1, 1 abstain.

Introduce Proposed Council Rule Changes

This information was placed in the Council packet.

Mayor Lovett said it was to be an introduction for the Council and a discussion will take place at the next Council meeting.

Mayor Lovett proposed the following Council Rule changes:

1. Consent Calendar: The mayor, in collaboration with the city manager, may place items on the consent calendar that do not require a public hearing and are routinely approved by a large majority of the governing body. Examples of such items include, but are not limited to, appointments to boards, committees or commissions, the acceptance of gifts/donations, and annual review of various documents. Any member of the Council may, upon request under Agenda Changes, pull an item off the consent calendar. That item will then be placed under either Old or New Business as appropriate.
2. Change to Rule #22 (Order of Business): Should a consent calendar be adopted, the Order of Business would be amended to read:
 1. Pledge of Allegiance
 2. Roll Call
 3. Agenda Changes
 4. Report of the Secretary
 5. Mayor’s Notes
 6. City Manager’s Report
 7. Citizen’s Forum - Non agenda Items (Note: Citizens will be allowed to speak on agenda items when they are discussed by the City Council)
 8. Consent Calendar

9. Old Business
 10. New Business
 11. Committee Reports
 12. Future Agenda Items and Directives
 13. Adjournment
-
3. Appointment of Councilors to Boards, Committees or Commissions: Appointments of Council members to boards, commissions or committees will occur in January via the nomination process at a Council meeting. Council members should indicate their desire to serve on a board, commission or committee NLT the first regularly scheduled meeting in January. After accepting all nominations for an appointment, the Mayor will ask for a vote for each member seeking the appointment. The individual with the highest number of votes shall be appointed for a one-year term. If, after successfully completing his/her one-year term, the Council member is seeking reappointment, he or she should be given preference.
 4. Citizen Letters: When the Council receives a citizen's request to enter a personal letter into the record, the letter will be attached to the minutes in its entirety. It will not be read into the record unless the citizen does so or has another citizen do so on his/her behalf. If the topic of the letter is not an agenda item, the citizen shall read the letter during citizen's forum. If the topic of the letter pertains to an agenda item, the citizen will read the letter at the time during which that agenda item is discussed.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Sweetser said that three people told her that they couldn't Zoom, call or come into City Hall for the Council meetings. She suggested people be allowed into City Hall. Mayor Lovett asked Mr. Morris to investigate the set-up. Mr. Morris will work on this.

Councilor Stone agreed with Councilor Sweetser. He suggested looking at going back to the Claremont Savings Bank Community Center. Mayor Lovett said the logistics will have to be looked at. She wants to make sure no one is being excluded.

Councilor Koloski said he had heard similar concerns from a couple of people.

Councilor Stone talked about the timeliness of responses to RSA 91-A requests. Mr. Morris said that it is important to keep personal requests from Councilors separate from Council requests. Any responses to requests received from Councilors are sent to all Councilors. We try to get them out in a timely manner. He clarified that a 91-A request is a request for a document.

Councilor Stone asked that information be made available on the new website on how to contact boards and commissions.

Councilor Contois wants the Censure discussion placed back on the agenda.

Mayor Lovett said she is considering having a special meeting to review good governance (i.e. emails, 91-A challenges). Councilor Koloski agreed with that and suggested that it not be just for Council, but also other boards/committees. Mayor Lovett said it would be recorded and available for others. She'll pursue some ideas.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 9:15 p.m., a motion was made by Assistant Mayor Damren and seconded by Councilor Sweetser to adjourn.

Roll call vote:

O'Hearne - abstain

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0, 1 abstain.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council